

		All cross-complaints that are not compulsory are permissive cross-complaints. Leave to file a permissive cross-complaint is within the discretion of the court, which may be granted "in the interests of justice." (Code Civ. Proc., § 428.50, subd. (c).) Here, Defendant Abustan seeks to file a cross-complaint against a third-party and not the Plaintiff. Therefore, the cross-complaint is permissive rather than compulsory/ Here, Defendant Abustan seeks to add a third-party to this action only a month before trial. If the court were to grant the motion, this would delay the trial as the cross-defendant would need time to prepare for trial. Further, the allegations in the proposed cross-complaint show that Defendant Abustan was aware of the identity and involvement of Mathew Laspia at the time the events alleged in the Complaint occurred. (See Decl. of Jason Abustan in Supp. of Mot. for Joinder or, in the Alternative, Leave to File Cross-Compl., ¶¶ 12-20.) At a minimum, Defendant Abustan was aware of the conduct of Matthew Laspia of which he now complains, no later than June 18, 2025, when he filed Defendant's Answer to Plaintiff's First Amended Complaint. (See Def.'s Answer to Pltf.'s First Amend. Compl. at pp. 5-6.) Defendant Abustan provides no explanation for his delay in seeking leave to file the cross-complaint against Matthew Laspia. Finally, Defendant Abustan fails to show that he will not be able to bring his claims against Matthew Laspia in a separate action or that he will be prejudiced in some other way if the court denies his motion. Therefore, the court will deny the motion for leave to file cross-complaint. Plaintiff shall give notice of this ruling.
2	Sunstate Equipment Co., LLC vs. Treni Cole Builders, Inc.	<u>Motion to Set Aside Default</u>

	30-2025-01451346	Cross-Defendant Jonathan Mejia's Motion to Set Aside Default Judgment is taken OFF CALENDAR pursuant to the Request for Dismissal without Prejudice of the Cross-Complaint filed July 20, 2026 (ROA #125).
3	T. H. vs. AV Investment & Consultant Group, LLC 30-2024-01404661	<u>Motion to Consolidate</u> Defendants AV Investment & Consultant Group, LLC's; Andrew Vo's; and Ngoc Dung's Motion to Consolidate is DENIED without prejudice. <u>Pending Motion</u> Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung move to consolidate: • <i>Tran Hung and Cu Khanh vs. AV Investment & Consultant Consolidate Group, LLC; Andrew Vo; and Ngoc Dung</i>, Orange County Superior Court Case Number 30-2024-01404661 (Earlier Action); and • <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>, Orange County Superior Court Case Number 30-2026-01539064 (Later Action). <u>Prior Proceedings</u> This court previously ruled that Defendants had not complied with California Rules of Court rule 3.350(a)(1)(C), which states that "[a] notice of motion to consolidate must ... [b]e filed in each case sought to be consolidated." (Cal. Rules of Court, rule 3.350(a)(1)(C); see ROA #76 at p. 2.) While Defendants filed this motion in the Earlier Action, the court records revealed that they failed to do so in the Later Action, <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>. Further, while the motion references a declaration from attorney Walter Emil Teague III, no such declaration was filed. (See ROA #75 at p. 2.)